

service of notice or papers need not be made upon the defendant.” CCP § 1048. Neither Defendant has appeared in 209356, however it appears that Defendant Fulk will be represented by the same counsel as in 206140 and Plaintiffs provided a courtesy copy of the motion to Defendant Dennis L. Brent’s counsel. Therefore, the motion was properly noticed. Neither Defendant filed an Opposition.

Merits. Motions to consolidate have certain pleading requirements that are described in CRC 3.350. Plaintiffs have complied with the requirements set forth in CRC 3.350.

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

CCP § 1048(a).

Consolidation is appropriate where economy and convenience would be served by having the matters consolidated. The purpose of uniting separate lawsuits is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal. App. 4th 976, 978-979.

The two cases here stem from the same piece of real property. The two matters present common questions of law and fact and it appears that consolidating the matters is in the interest of judicial economy. No issues of prejudice have been raised and, despite being properly noticed, no party opposed the motion.

The Motion to Consolidate is **GRANTED**. 209356 is consolidated into 206140 for all purposes. All future filings will be in the lead case 206140, which is assigned to Department 63. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order and provide copies for both files.

The Court notes that 206140 is on calendar today for review regarding status of settlement or trial setting. An appearance will be necessary at 9:00 a.m. Prior to the review hearing, the parties are to meet and confer to discuss whether the dates currently set in 209356 are acceptable. The present dates in 209356 are November 3, 2026 for trial and September 8, 2026 for Mandatory Settlement Conference.

SERAQUIEL VS. CARPENTER, ET AL.

CASE NUMBER: 25CV-0208634

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 4, 2026 to Plaintiff Christine L. Seraquiel, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b) and failure to timely seek entry of default as required by CRC 3.110(g). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on September 8, 2025 and a valid Proof of Service of Summons has not been filed for Defendant Shaun Michael Carpenter. Proof of Service of Summons was filed for Defendant Jeffery Del Vecchio on September 22, 2025, however, no Request for Entry of Default has been filed. “If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed.” CRC 3.110(g). Plaintiff did not file a written response to the Order to Show Cause.

Without sufficient excuse for the delays, sanctions are imposed in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve per CRC 3.110(b), failure to timely seek entry of default per CRC

3.110(g), and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be on **Monday September 14, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause Re: Dismissal.

WIEMERS, ET AL. VS. HOERNING, ET AL.

CASE NUMBER: 25CV-0208527

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiffs Christopher Wiemers and Michael Rooney and counsel Rooney Law Firm for failure to timely serve Defendant as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on August 25, 2025 and no Proof of Service of Summons has been filed. Plaintiffs did not file a written response.

Without sufficient excuse for the delay, sanctions are imposed in the amount of \$250 against Plaintiffs and counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve per CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be on **Monday September 14, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause Re: Dismissal.

9:00 a.m. – Review Hearings

CAPITAL ONE, N.A. VS. FORTNER

CASE NUMBER: 25CVG-00896

This collections action is on calendar for review regarding status of the case and to reset the court trial. The matter is at issue. **An appearance is necessary on today’s calendar.**

CHEATHON VS. DOHANUE

CASE NUMBER: 25CV-0208536

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than February 23, 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today’s calendar.**

GAIGE VS. GREYHOUND LINES, INC, ET AL.

CASE NUMBER: 23CV-0203891

This matter is on calendar for review regarding status of removal to Federal Court. No status statement was filed. **An appearance is necessary on today’s calendar.**

HUNTER VS. OXFORD SUITES REDDING, ET AL.

CASE NUMBER: 25CV-0208594

This matter is on calendar for a trial setting conference. The matter is not at issue. Plaintiff has not filed a Proof of Service of Summons for all named defendants. The Court will issue an Order to Show Cause Re: Sanctions in the amount of \$250 to Plaintiff and counsel for failure to timely serve all defendants pursuant to CRC 3.110(b). Hearing on the Order to Show Cause will be on **Monday, September 21, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to prepare the Order to Show Cause. The matter will also be on calendar on **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of the case. **No appearance is necessary on today’s calendar.**